

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 27, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

- oo0oo -

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 27, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	17CV315304	Capital One Bank (USA), N.A. vs Juan Campos	Motion to Set Aside Default Judgment Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	23CV427373	Sikh Gurdwara-San Jose (California) vs Surinder Sangha	Motion for Summary Judgment/Adjudication OFF CALENDAR. On January 8, 2026, Defendant Surinder Sangha filed this motion for summary adjudication. On February 13, 2026, the Honorable Jose Franco issued an Order granting a permanent injunction against Defendant Sangha after the matter proceeded to trial. Thus, this motion is rendered MOOT.
<u>LINE 3</u>	24CV454891	Janae Scales et al vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV456790	William Backstrand et al vs Vincent Braga et al	Motion for Terminating Sanctions Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV462475	Monica Ramos et al vs Angela Pollard, MD et al	Motion for Leave to File Scroll down to Line 5 for Tentative Ruling.
<u>LINES 6-8</u>	25CV477274	Yevgeniy Tilman et al vs Ruby Dobry et al	Motion to Strike (Line # 6); Motion to Strike (Line # 7); Lines # 7-8 OFF CALENDAR. On April 20, 2026, Plaintiffs filed a First Amended Complaint rendering the Defendants' anti-SLAPP special motion to strike filed on January 21, 2026 (Line # 6) and Motion to Strike filed on December 12, 2025 (Line # 7) as MOOT. Motion for Protective Order (Line # 8) Scroll down to Line #8 for Tentative Ruling.

- 00000 -

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 27, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINES</u> <u>1-2</u>	19CV360733	Edward Kellar et al vs Central Investments et al	Hearing: Order of Examination Parties to appear.

- oo0oo -

9:00 A.M.

Calendar Line # 1

Case Name Capital One Bank (USA), N.A. vs Juan Campos

Case No. 17CV315304

Motion to Set Aside Default Judgment

I. BACKGROUND

This collection case stems from Defendant Juan Campos (“Campos”) owing Plaintiff Capital One Bank (USA) N.A. (the “Bank”) money lent in the principal amount of \$3,160.22. Plaintiff Bank filed a Complaint on or around August 24, 2017. No Answer was filed. Plaintiff filed a request for default judgment that was clerk approved on January 25, 2018 in favor of the Bank against Defendant Campos for \$3,455.22, compromised of \$3,160.22 in damages and \$295.00 in costs. (Default Judgment; Memorandum of Points and Authorities, p.1).

On December 29, 2025, Plaintiff filed this present motion to set aside and vacate default and default judgment and dismiss the action with prejudice under Code of Civil Procedure section 473. The motion was accompanied by a proof of service indicating mail service on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, notice of motion (totaling 2 pages); memorandum of points and authorities (totaling 2 pages); notice of nonappearance (totaling 1 page); Declaration of Laura D’Anna (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

B. CODE OF CIVIL PROCEDURE SECTION 473.5

Code of Civil Procedure section 473.5(a) provides: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

III. ANALYSIS

Here, the Plaintiff filed this present motion to set aside and vacate the default and default judgment that was entered on January 25, 2018, which is—2,895 days or seven years, 11 months, and four days—after the entry of default. Based on this timeline, relief under Code of Civil Procedure section 473(b) is barred as the request for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions, supra*, 94 Cal.App.4th at 143). Based on this timeline, and the **extreme delay of nearly eight years passing** since the default judgment was entered to the time the motion was filed, the Court does not need to weigh the defendant’s submission of inadvertence, surprise, mistake, or excusable neglect.

Further, the Court lacks jurisdiction on the grounds that the Complaint was filed on August 24, 2017, which is 3,049 days, or 8 years, 4 months, and 5 days since the motion was filed.

Plaintiff seeks to dismiss the case with prejudice upon receiving notification that the defendant claimed fraud on the account. (Declaration of D’Anna ¶¶ 5 and 8). Plaintiff’s counsel, Laura D’Anna attests to reviewing and confirming the fraud claim. (*Id.*, at ¶6). However, Plaintiff’s counsel provides no details, specifically dates on when the defendant filed a fraud claim on his account, or when the plaintiff first learned of the fraud claim and confirmed the claim. There was no dismissal of the case without prejudice with the court retaining jurisdiction under section 664.6. There was no timely appeal. Thus, the default judgment is the formal judgment. Based on the totality of the circumstances, the excessive delay in pursuing relief and the age of the Complaint precludes this Court from granting relief. Plaintiff’s failure to seek diligent relief for **nearly eight years** precludes relief set forth under Code of Civil Procedure sections 473(b) or 473.5.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion to set aside and vacate the default judgment. The Court will prepare the Order.

Calendar Line # 3
Case Name Janae Scales et al vs Ford Motor Company et al
Case No. 24CV454891
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary adjudication against plaintiffs Janae Scales and Brandon Scales’ fifth cause of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> This action stems from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”) by plaintiffs Janae Scales and Brandon Scales (collectively, “Plaintiffs”) against defendants Ford Motor Company (“Ford”) and Gosch Ford Temecula. According to the Complaint, Plaintiff purchased a 2020 Ford Expedition under warranty on May 20, 2020 (“Subject Vehicle”). (Complaint, ¶ 7). Before Plaintiff purchased the Subject Vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the “Transmission Defect”). (<i>Id.</i> at ¶ 24). Plaintiff alleges the following causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford filed the instant motion for summary adjudication on July 15, 2026. On June 17, 2026, the court granted Ford’s <i>ex parte</i> application to advance the hearing on Ford’s motion from January 12, 2027 to August 27, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)). “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (<i>Id.</i> at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (<i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 540). Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary

adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. PROCEDURAL ISSUES

A. PLAINTIFF’S REQUEST FOR A CONTINUANCE

At the end of their opposition, Plaintiffs claim that the court should continue the hearing under Code of Civil Procedure section 437c, subdivision (h) to permit Plaintiffs to complete discovery of Ford’s pre-lease knowledge.

Under Code of Civil Procedure section 437c, subdivision (h), a court shall order a continuance to permit further discovery if “it appears from the affidavits submitted in opposition to a motion for summary adjudication that facts essential to justify opposition may exist but cannot, for reasons stated, be presented. . .”

The opposing party’s affidavits or declarations in support of a request to continue the hearing should show the following: facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; the specific reasons why such evidence cannot be presented at the present time; an estimate of the time necessary to obtain such evidence; and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (See *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420 [declaration that “additional information and testimony” required to “adequately respond to Defendant’s Motion” insufficient; *Johnson v. Alameda County Med. Ctr.* (2012) 205 Cal.App.4th 521, 532 [declaration stating “discovery is reasonably necessary to determine who” may be responsible for injury “insufficient to support a continuance”]).

Plaintiffs have not supplied the court with any affidavits indicating why a continuance is justified. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 [stating only that “further discovery or investigation is contemplated” is not sufficient]). Upon review of the record, Plaintiffs did not oppose Ford’s June 16, 2026 *ex parte* application to advance the hearing date of the present motion. Plaintiffs had weeks to request a continuance from the court before filing the opposition but failed to do so. (*Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1350, 1353 [no abuse of discretion in denying request where plaintiff “failed to request a continuance of the summary judgment motion hearing at any time prior to the hearing itself, not to mention prior to the deadline for opposing the motion”]).

Plaintiffs’ request for continuance is denied.

B. PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE

Plaintiffs’ request for judicial notice of four Technical Service Bulletins (“TSBs”) published on the website of the National Highway Traffic Safety Administration (“NHTSA”) is denied. Plaintiffs do not cite authority permitting the court to take judicial notice of the truth of the TSBs’ contents. Plaintiffs’ citation to *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606 is inapposite because, there, the appellate court took judicial notice of a website showing the Department of Transportation’s structure and definition of “mass transportation.” The TSBs are information reported by Ford; the contents do not represent an “official act” of the NHTSA nor are they not reasonably subject to dispute. (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”]; see also *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193 [taking judicial notice of existence, but not contents of webpage]). While the court may take judicial notice of the fact that the TSBs were published on NHTSA’s website, the court cannot take judicial notice of the hearsay statements therein.

C. FORDS EVIDENTIARY OBJECTIONS

Ford submitted evidentiary objections to the declarations of plaintiff Janae Scales and Plaintiffs’ counsel, Jacob

Lister. The court declines to rule on these objections, which are preserved, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q)).

IV. ANALYSIS

Ford moves for summary adjudication of Plaintiffs' fifth cause of action for fraudulent inducement-concealment on the ground that Plaintiffs have no evidence that Ford knew of and concealed the Transmission Defect.¹

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). "[A] defendant cannot simply 'argue' that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative 'showing' that the plaintiff *cannot* do so." (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, italics original). When relying on "factually devoid" discovery responses, the defendant must show that "discovery was sufficiently comprehensive, and plaintiffs' responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses]." (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

In contending Plaintiffs have no evidence of Ford's prior knowledge of the Transmission Defect, Ford offers Plaintiffs' discovery response as support.

On September 22, 2025, Plaintiffs responded to Ford's special interrogatories, which required each Plaintiff to "state all facts", "identify all persons", and "identify all documents" supporting their fraudulent concealment claim. (Ford's Separate Statement of Undisputed Material Facts ["SSUMF"], Nos. 6, 8). Plaintiffs responded by referencing their allegations within the Complaint, their 114-page document production, and vaguely referring to Ford's "agents, representatives, and employees[.]" (See e.g., Declaration of Hailey M. Rogerson, Exh. C, p. 16-19). The 114-page document production consists of the lease and sales contract for the Subject Vehicle, various repair orders, insurance and registration information, and the payment history for the Subject Vehicle. (SSUMF, No. 12). None of the documents predate Plaintiffs' May 20, 2020 purchase of the Subject Vehicle. Neither Plaintiff's discovery responses nor the document production proves the necessary elements to support a claim for fraudulent inducement-concealment. Ford therefore meets its initial burden.

In opposition, Plaintiffs fail to meet their burden of demonstrating a triable issue of material fact. Plaintiffs rely on repair orders that reference Ford TSBs (TSB 22-2145, TSB 23-2250, and TSB 24-2101) to demonstrate Ford's prior knowledge of the Transmission Defects. Plaintiffs do not include these TSBs as part of the record. Instead, Ford provides these TSBs alongside their reply to demonstrate that even if they had been included, they would not demonstrate a triable issue of material fact concerning Ford's prior knowledge of the Transmission Defect. Specifically, all three TSBs were published after Plaintiffs had already purchased the Subject Vehicle. (Reply Declaration of Hailey M. Rogerson, Exhs. A-C).² In any event, the TSBs are not proper matters for judicial notice and "[a] TSB is not and cannot fairly be construed by a trial court as an admission of a design or other defect,

¹ While the Notice of Motion and Motion for Summary Adjudication also states that Ford makes its motion on the ground that Plaintiffs have no evidence that the Subject Vehicle was manufactured with a "Battery Defect", the supporting memorandum of points and authorities only argues that Plaintiffs have no evidence that Ford knew of and concealed the Transmission Defect.

² The court has discretion to consider supplemental evidence submitted with the reply, if the evidence fills gaps in evidence created by the opposition. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538).

because TSBs are routinely issued to dealers to help diagnose and repair typical complaints.” (*American Honda Motor Co., Inc. v. Super. Ct.* (2011) 199 Cal.App.4th 1367, 1378).

Plaintiffs cite *Santana v. FCA, US, LLC* (2020) 56 Cal.App.5th 334, 345 (*Santana*) and *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 (*Dhital*) to support their contention that Ford’s pre-sale knowledge is a question of fact that cannot be resolved on summary judgment. *Santana* is unavailing for Plaintiffs because the *Santana* court expressly focused on evidence dated prior to the plaintiff’s purchase of his vehicle. (*Santana, supra*, 56 Cal.App.5th at p. 345 [“Santana purchased his vehicle in November 2011. The focus of our inquiry, therefore, is what the evidence disclosed regarding Chrysler’s knowledge of the defect prior to November 2011.”]). Here, Plaintiffs have produced no evidence that preexisted the May 20, 2020 purchase of the Subject Vehicle. And *Dhital* concerned a demurrer, rather than a motion for summary adjudication. (*Dhital, supra*, 84 Cal.App.5th at pp. 832-833).

Given the foregoing, the court grants Ford’s motion

V. CONCLUSION

Based on the foregoing, the Court GRANTS Ford’s motion for summary adjudication of the fifth cause of action for fraudulent concealment – inducement. The Court will prepare the formal Order.

Calendar Line # 4

Case Name William Backstrand et al vs Vincent Braga et al

Case No. 25CV456790

Motion for Terminating Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident on January 27, 2023 at the intersection of Webster and Tennyson Avenue in Palo Alto. Plaintiffs William Backstrand and Alden Backstrand (collectively “Plaintiffs”) filed a Complaint on January 17, 2025 against the Defendants Vicent Braga and Bethany Kay (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 9, 2026, the Court (Hon. Jose Franco) heard Defendants Motion to Compel Responses to Interrogatories and Demand for Inspection and Request for Monetary Sanctions against the Plaintiffs. Defendants assert that on February 24, 2025, it served Plaintiffs with Form Interrogatories (“FROG”) (Set One), Special Interrogatories (“SPROG”) (Set One), and Demand for Inspection (Set One), and request for sanctions. No opposition papers were filed by the Plaintiffs. After the hearing, the Court granted the Defendants’ motion to compel answers to FROG, SPROG, and Demand for Inspection, set one, and ordered Plaintiffs to served verified answers within 20 days. The Court granted the Defendants’ motion for sanctions, and awarded sanctions in the amount of \$780.00, which the Plaintiffs were ordered to pay within 30 days. The formal Order was executed on May 6, 2026 by the Honorable Franco and filed on May 7, 2026.

C. PRESENT MOTION

On July 8, 2026, Defendants filed this motion for terminating sanctions. The motion was accompanied by a proof of service indicating electronic service to Plaintiffs’ counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of

Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: notice of motion and memorandum of points and authorities (totaling 6 pages); and Declaration of William Coke and attached Exhibits A-B (20 pages); Reply brief (totaling 3 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Defendants seek terminating sanctions against Plaintiffs for failure to comply with Court orders. Defendants assert that initial written discovery, including FROG, SPROG, and Demand for inspection were served on Plaintiffs on February 25, 2025. (Motion, p. 3; Declaration of Coke, ¶ 4). Responses were due within thirty days. Defense counsel asserts he has attempted to meet-and-confer with Plaintiffs’ counsel from April 22, 2025 through June 19, 2026. (Declaration of Coke, ¶ 7; Exhibit A). The Defendants filed a motion to compel discovery and sanctions on June 17, 2025. On April 9,³ 2026, the Court granted the motion to compel and awarded sanctions against the Plaintiffs. Plaintiffs were ordered to provide verified responses to initial discovery within 20 days and pay sanctions within 30 days. The Order was filed on May 7, 2026. (Exhibit B attached to the Declaration of Coke, ¶ 9).

³ The Court notes the motion to compel was heard on April 9, 2026. The Deflation of William Coke states that the motion was heard on April 19, 2026 (Declaration of Coke, ¶ 8-9, and 13), which the Court notes is in error.

To date no responses to the written discovery were served and sanctions have not been paid. (Motion, p. 3-4). Plaintiffs' counsel have not responded to defense counsel's attempts to meet-and confer. (*Id.*).

Defendants emphasize that trial is set in this matter for December 14, 2026, and without written discovery responses, Defendants cannot determine the claimed injuries, medical providers, or damages that the Plaintiffs seek arising from this motor vehicle incident. (Declaration of Coke, ¶ 4). Written discovery would precede depositions of both Plaintiffs. (Motion, p. 4). Defendants assert that it is severely prejudiced in defending against any claims asserted against them. (*Id.*).

Finally, Defendants argue that Plaintiffs failures to provide written responses or pay sanctions as ordered by the Court, demonstrated “. . . repeated and willful failure to participate in the discovery process” or in the prosecution in the case, which merits dismissal of the action. (*Id.*, at p. 5).

Defendants also emphasize in its reply brief, that Plaintiffs failed to file Opposition papers, which is an admission that the motion is meritorious. (Reply, p. 2).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that the Defendants have met its burden of showing that he plaintiff has not complied with the court orders and discovery. Thus, the Court finds that monetary sanctions are appropriate given Plaintiffs refusal to comply with court ordered discovery regarding verified responses to FROG, SPROG, and Demand for Inspection, set one, and failure to pay the \$780.00 previously imposed by Judge Franco on April 9, 2026. The responses were due within 20 days and the payment of sanctions were due in 30 days.

It has been more than three months since the responses and sanctions were due. This is undue delay. Trial is set in approximately four months and failure to provide discovery may result in terminating or evidentiary sanctions. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court will decline to impose terminating or evidentiary sanctions. The Court will award sanctions. However, Plaintiffs are admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. SANCTIONS

Defendants seek sanctions against Plaintiffs for fees and costs associated with filing this present motion. Defense counsel seeks compensation for two hours of work expended on preparing the motion at the hourly rate of \$200.00. Defense counsel also seeks an additional hour of work at the same hourly rate in anticipation of appearing for the motion. Defendants also seek \$60.00 in costs for filing fees. In total, Defendants seek \$660.00 in sanctions.

The Court will award the full amount of time expended on preparing for the motion of two hours at the requested hourly rate of \$200.00 as well as the \$60.00 in Cost. Defendants motion for sanctions against Plaintiffs is GRANTED in the amount of \$460.00.

V. CONCLUSION

Based on the foregoing, and the motion being unopposed, the motion for terminating and evidentiary sanctions is DENIED without prejudice at this time.

The motion for monetary sanctions in the amount of \$460.00 in favor of Defendants and against Plaintiffs is GRANTED.

Plaintiffs are ORDERED to Comply with discovery responses as ordered on April 9, 2026 (formal Order on May 7, 2026), and provide responses within ten (10) days of this hearing.

Plaintiffs are ORDERED to pay the \$460.00 in sanctions in this motion, as well as the \$780.00 in sanctions previously ordered by the Court on April 9, 2026. The total sanction amount of \$1,240.00 is to be paid within ten (10) days of this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Monica Ramos et al vs Angela Pollard, MD et al

Case No. 25CV462475

Motion for Leave to File

Before the court is plaintiffs Rocco Ramos, Monica Ramos, and Richard Ramos's motion for leave to file third amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

According to the second amended complaint ("SAC"), on March 1, 2023, plaintiff Monica Ramos ("Monica"), sought prenatal care for an unborn child, plaintiff Rocco Ramos ("Rocco") on October 6, 2023.⁴ (SAC, ¶ 36). Prenatal care was rendered through Rocco's birth by gynecologist and obstetrician, defendant Angela Michelle Pollard, M.D. ("Dr. Pollard") and her practice groups/ corporations. (*Ibid.*). Dr. Pollard was assisted by Christine Kulle, NP ("Kulle"), among other individual defendants. (*Ibid.*).

Rocco was born with a birth defect called arthrogryposis multiplex congenita and quadriplegic cerebral palsy, both of which are incurable, non-progressive conditions that cause lifelong disability and special needs. (SAC, ¶ 42). Had Monica been given any information that her unborn son had any sort of fetal anomaly as early as May 5, 2023 to make an informed decision, she would have elected to have a second-trimester surgical abortion for pregnancy termination due to fetal anomalies. (*Ibid.*).

On September 19, 2025, plaintiffs Rocco, Monica, and Richard Ramos (collectively, "Plaintiffs") filed the operative SAC against various individuals and entities, including Dr. Pollard, Angela Michelle Pollard, M.D., Inc., Above Parr Women's Center, and Kulle (collectively, the "Pollard Defendants"), among others.

⁴ The court refers to the plaintiffs by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 11).

Before the court is Plaintiffs' motion for leave to amend to add punitive damages against the Pollard Defendants.⁵ The Pollard Defendants oppose the motion.

II. LEGAL STANDARD

In general, under Code of Civil Procedure section 473(a)(1), a trial court has wide discretion, "in furtherance of justice," to "allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1)). A motion for leave to amend to allege punitive damages against a healthcare provider, however, is not a standard motion for leave to amend under Code of Civil Procedure, section 473. Instead, it is governed by Code of Civil Procedure section 425.13.

Code of Civil Procedure section 425.13, subdivision (a) bars a plaintiff from pleading punitive damages against a healthcare provider unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed.

A motion for leave to amend punitive damages against a healthcare provider "operates like a demurrer or motion for summary judgment in 'reverse.'" (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 719 (*College Hospital*)). The plaintiff has the burden of substantiating his or her claim for punitive damages with factual recitals made under penalty of perjury and set forth competent admissible evidence within the personal knowledge of the declarant. (*Id.* at pp. 719-720). The court must deny the motion if the facts are legally insufficient to support a punitive damages claim or the evidence either negates or fails to reveal the actual existence of a triable claim. (*Pomona Valley Hospital Medical Center v. Superior Court* (2013) 213 Cal.App.4th 828, 835 (*Pomona Valley Hospital*)). The court may not "reject a well-pled and factually supported punitive damages claim simply because the court believes that the evidence is not strong enough for probable success before a jury." (*College Hospital, supra*, 8 Cal.4th at p. 709).

Civil Code section 3294 authorizes punitive damages upon clear and convincing proof of malice, oppression, or fraud. Malice means conduct intended to cause injury or despicable conduct undertaken with willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1)). Fraud means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intent to deprive a person of property or legal rights or otherwise cause injury. (Civ. Code, § 3294, subd. (c)(3)).

III. ANALYSIS

Plaintiffs seek leave to amend to add claims for punitive damages. Plaintiffs contend the evidence substantiates three theories supporting punitive damages: (1) medical battery based on conditional consent; (2) fraud through the intentional concealment of material facts; and (3) breach of fiduciary duty through the concealment of financial self-interest.

A. MEDICAL BATTERY

Plaintiffs' proposed third amended complaint ("TAC") alleges that the Pollard Defendants maliciously proceeded with prenatal care, labor and delivery in willful and conscious disregard of Monica's conditioned consent. (TAC, ¶ 148). Monica conditioned her consent to continued prenatal care and delivery on confirmation through the anatomy ultrasound that her baby was healthy. (*Id.* at ¶ 139). The TAC also alleges that the Pollard acted fraudulent by intentionally concealing from Monica that (1) the May 5, 2023 ultrasound worksheet noted "arms remained cross"; and (2) the fetal upper extremities were not adequately visualized despite billing the examination as CPT code 76811 for a detailed fetal anatomic examination. (*Id.* at ¶ 148).

⁵ Plaintiffs originally sought leave to add punitive damages against defendant Kevin Pung ("Pung") as well. The parties stipulated to withdraw the motion against Pung. (August 14, 2026 Stipulation and Order).

To recover on a battery theory, a plaintiff must establish that: (1) consent to the medical procedure was conditioned on a specific term; (2) the defendant intentionally violated the condition while performing the procedure; and (3) the plaintiff suffered harm because of the violation. (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611 (*Ashcraft*)). The element of deliberate intent to deviate from consent (i.e. willful disregard of rights or malice) is present where a plaintiff gives permission for one procedure but receives another. (*Id.* at p. 613).

Here, Plaintiffs' evidence is sufficient to state and substantiate the claim for punitive damages based on fraud and malice. Monica declares that she consistently informed the Pollard Defendants that she would continue her pregnancy only if the baby was healthy and that the anatomy scans revealed her baby was healthy. (Declaration of Monica, ¶¶ 4-6). The condition was not satisfied. The May 5, 2023 worksheet contained the notation that the "arms remained cross", and Dr. Pollard admitted in her discovery responses that restricted fetal extremity movement may indicate a fetal abnormality. (Declaration of Haberkorn, Exh. A [May 5, 2023 Worksheet]; Exh. F [Amended Pollard Response to Requests for Admission], p. 2:4-18). Monica, however, never received the May 5, 2023 worksheet, and no one told her that the baby's arms and hands had not been adequately seen. (Declaration of Monica, ¶ 8). Instead, her chart represented that the arms were visualized and normal. (Declaration of Haberkorn, Exh. B [May 5, 2023 Medical Chart]). Monica continued with her pregnancy, and Rocco was born with congenital anomalies among other conditions. (*Id.* at ¶¶ 8-10). The evidence indicates the Pollard Defendants knew of Monica's express condition, knew that the May 5, 2023 worksheet was inconsistent with the May 5, 2023 Medical Chart, but nonetheless told Monica that the May 5, 2023 exams and subsequent exams did not reveal any abnormalities.

Furthermore, Monica received a standard second-trimester scan in-house rather than the referral-level targeted "level 2" ultrasound at a Prenatal Diagnostic Center ("PDC"). Monica understood that the PDC scan would be a "specialist-level examination capable of ruling out problems with the baby," and help satisfy her express condition for continuing the pregnancy. (Declaration of Monica, ¶ 5). She was not informed that the referral to the PDC had been abandoned. (*Id.* at ¶ 8). Instead, Dr. Pollard performed the standard second-trimester scan in-house and billed it at the specialist code, CPT 76811. (Declaration of Haberkorn, Exh. G [Pollard Response to Special Interrogatories] at pp. 18:11-19:5; May 5, 2023, Medical Chart, p. 2). Thus, the evidence indicates that Dr. Pollard provided a different procedure than the one Monica consented to in willful disregard of Monica's rights. (See *Ashcraft, supra*, 228 Cal.App.3d at p. 613).

B. INTENTIONAL MISREPRESENTATION

Plaintiffs' TAC alleges that the Pollard Defendants misrepresented that the May 5, 2023 examination revealed fetal anatomy that was visualized and within normal limits. (TAC, ¶ 158).⁶

As noted above, the elements of fraud under Civil Code section 3294 subdivision (c)(3) are established if a plaintiff demonstrates an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant, made with the intent to deprive a person of property or legal rights or otherwise causing injury.

Plaintiffs' evidence is sufficient to state and substantiate a legitimate, triable punitive damages claim under an intentional misrepresentation theory. Plaintiffs present the following admissible evidence: the May 5, 2023 worksheet containing the notation that the "arms remained cross"; Dr. Pollard reviewed the worksheet (Declaration of Haberkorn, Exh. F [Pollard Response to Requests for Admission], p. 3:11-25); Monica's chart represented the arms were visualized and normal; Plaintiff was told that no fetal anomaly had been found and that the scan was normal (Declaration of Monica, ¶ 7); and Dr. Pollard admitted that restricted fetal extremity movement may indicate a fetal abnormality. (Amended Pollard Response to Requests for Admission, p. 2:4-18).

⁶ Notably, the TAC does not allege the billing code misrepresentation as a basis for the punitive damages. Only the evidence concerning the alleged misrepresentation of the May 5, 2023 examination will be considered.

Whether Dr. Pollard’s review of the worksheet, coupled with her representation of normalcy in Monica’s medical chart, constitutes intentional concealment of a known material fact cannot be resolved with the present motion. At this stage, the court is concerned with whether facts have been pled to support the claim for punitive damages and whether evidence reveals the existence of a triable claim. (*Pomona Valley Hospital, supra*, 213 Cal.App.4th at p. 835; *Cicone v. URS Corp.* (1986) 183 Cal.App.3d 194, 203 [indicating that fraudulent intent may be alleged as a conclusion]). Given the foregoing, Plaintiffs have met their burden here.

C. BREACH OF FIDUCIARY DUTY

Plaintiffs’ TAC alleges that the Pollard Defendants concealed: (1) the May 5, 2023 worksheet notation “arms remained cross”; (2) abandonment of the April 21, 2023 referral for a level 2 ultrasound at a PDC; (3) the inability of Defendants’ in-office ultrasound equipment to record and store static and dynamic imaging; and (4) their financial self-interest in performing and billing the specialist code (CPT code 76811) for an in-house examination. (TAC, ¶ 167). Plaintiffs argue that the Pollard Defendants breached their fiduciary duty by concealing financial self-interest.

“[A] physician who is seeking a patient’s consent for a medical procedure must, in order to satisfy his fiduciary duty and to obtain the patient’s informed consent, disclose personal interests unrelated to the patient’s health, whether research or economic, that may affect his medical judgment.” (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 131-132).

Plaintiffs’ evidence demonstrates that: (1) a specialist PDC referral was ordered (Declaration of Haberkorn, Exh. C [April 21, 2023 Chart]; (2) the examination was performed in-house (May 5, 2023 Medical Chart, p. 2); (3) the exam was billed at the specialist code, CPT 76811 (*Ibid.*); and (4) Dr. Pollard was affiliated with UCSF Health Medical Foundation. (Declaration of Haberkorn, Exh. O, pp. 2:16-3:9). The evidence does not establish why the referral was not honored, whether financial considerations motivated the change to an in-house examination, or that Dr. Pollard had a separate financial interest that would affect her personal judgment. Plaintiffs’ evidence only establishes that Dr. Pollard was affiliated with UCSF.

Given the forgoing, the court concludes that the facts asserted in the proposed amendment are insufficient to support a punitive damages claim for breach of fiduciary duty. (*College Hospital, supra*, 8 Cal.4th at p. 719).

D. LIABILITY OF THE CORPORATE POLLARD DEFENDANTS

The TAC alleges that the corporate Pollard Defendants—Angela M. Pollard MD Inc., Above Parr Women’s Center, and Pollard Wellness, Inc.—are liable for punitive damages for the intentional misrepresentation and breach of fiduciary duty causes of action because each ratified the actions of Dr. Pollard, the officer, director, and/or managing agent of each entity. (TAC, ¶¶ 158, 167).

For corporate punitive damages liability, [Civil Code] section 3294, subdivision (b), requires that the wrongful act giving rise to the exemplary damages be committed by an ‘officer, director, or managing agent.’” (*White v. Ultramar* (1999) 21 Cal.4th 563, 572).

The evidence establishes that Dr. Pollard is an officer, director, or managing agent of the corporate defendants. (Pollard Response to Request for Admissions, p. 13:17-27; Declaration of Haberkorn, Exh. L [Angela M. Pollard MD Inc. and Pollard Wellness, Inc. Form Interrogatory Responses]). Because the court finds that Plaintiffs have substantiated a triable fraud claim against Dr. Pollard individually, the finding extends to the corporate defendants of which she is the controlling person.

E. LIABILITY OF CHRISTINE MARIE KULLE, NP

In opposition, the Pollard Defendants separately contend that Plaintiffs' evidence does not demonstrate that Kulle is liable for fraud. Plaintiffs' evidence establishes that Kulle was not physically working in Dr. Pollard's office on May 5, 2023, and the evidence does not demonstrate that Kulle knew of a material abnormality and intentionally concealed the same. (Declaration of Monica, ¶ 6; Declaration of Haberkorn, Exh. I [Kulle's Responses to Special Interrogatories], pp. 2:19-3:3, 6:25-7:20). The motion is denied as to Defendant Kulle.

IV. CONCLUSION

Based on the foregoing, Plaintiffs' motion for leave to amend is DENIED as to defendant Christine Marie Kulle.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the breach of fiduciary duty causes of action is DENIED.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the medical battery and intentional misrepresentation cause of action against defendants Angela Michelle Pollard, M.D., Angela M. Pollard MD Inc., Above Parr Women's Center, and Pollard Wellness, Inc. is GRANTED.

Plaintiffs shall file the proposed third amended complaint in accordance with ten (10) days of this order.

The Court will prepare the formal Order.

Calendar Line # 8

Case Name Yevgeniy Tilman et al vs Ruby Dobry et al

Case No. 25CV477274

Motion for Protective Order (Line # 8)

I. BACKGROUND

This case arises from a fraud and breach of contracts claim, Plaintiffs Los Gatos Therapy Center, WK Medical Group, Yevgeniy Tilman, and Bruce Melvin Wermuth (collectively "Plaintiffs") filed a Complaint against Defendants Ruby Dobry, individually, and as the Special Administrator of the Estate of Yuriy Dobry (collectively "Defendants") on October 10, 2025. On April 20, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging six causes of actions: (1) fraud- intentional misrepresentation; (2) fraud- negligent misrepresentation; (3) fraud- concealment; (4) declaratory relief; (5) breach of contract; and (6) breach of contract. Prior to the Plaintiffs filing its FAC, Defendants filed an Anti-SLAPP and Motion to Strike. Those motions were rendered moot upon Plaintiffs' filing of the FAC.

On December 17, 2025, Defendants filed this present motion for protective order and stay of discovery. The motion included a notice of motion, motion, and Declaration of Ruby Dobry (totaling 5 pages).

II. PROCEDURAL VIOLATION

The Defendants' motion for protective order was not accompanied by a proof of service. Code of Civil Procedure section 1005 requires that a moving party must provide proof of service of the motion. Rules of Court, rule 3.1300(c) provides that a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. Given this procedural violation and the absence of an opposition motion or waiver of notice, the Court cannot consider the substance of this motion.

Defendants' also request for a stay on all discovery pending resolution of Defendants' motion to strike the Complaint in its entirety. The Court notes that this issue is moot as Defendants' motion to strike filed on December 12, 2025 and its anti-SLAPP motion filed on January 21, 2026 was rendered moot upon the Plaintiffs' filing of the FAC on April 20, 2026.

III. CONCLUSION

Based on the foregoing, the motion for protective order and stay on discovery is DENIED. The Court will prepare the formal Order.